2004

Executive Order

SIOUX NATIONAL FOREST

MONTANA AND SOUTH DAKOTA

The Proclamation dated June 30, 1911 (37 Stat., 1706), withdrawing for classification under the provisions of the Act of June 25, 1910 (36 Stat., 847), certain lands thereby excluded from the Sioux National Forest, in Montana and South Dakota, and providing for their subsequent restoration, is hereby amended to revoke such withdrawal in so far as the same affects the areas hereinafter described and to admit of the restoration of the public lands therein in a manner authorized by the Act of September 30, 1913 (38 Stat., 113):

In T. 21 N., R. 4 E., N½ N½ of Sec. 13, S½ NE¼ and SE¼ NW¼ of Sec. 23, E½ W½ of Sec. 26;

In T. 20 N., R. 5 E., SW¼ SE¼ of Sec. 6, NW¼ NE¼ of Sec. 7, NE¼ and N½ S½ of Sec. 9;

In T. 21 N., R. 5 E., N½ NW¼ of Sec. 14, N½ NW¼, SE¼ NW¼ and NE¼ SW¼ of Sec. 18;

In T. 22 N., R. 5 E., N½ SE¼ of Sec. 19, S½ S½ of Sec. 25, NW¼ NE¼ and NE¼ NW¼ of Sec. 32, W½ SE¼ and SE¼ SE¼ Sec. 33;

In T. 23 N., R. 5 E., SE¼ of Sec. 34 and SW¼ of Sec. 35;

In T. 22 N., R. 6 E., W½ of Sec. 31;

In T. 19 N., R. 7 E., E½ Sec. 11, Secs. 12 and 13, E½ Sec. 14;

In T. 19 N., R. 8 E., S½ of Sec. 3, SE¼ of Sec. 4, Secs. 7 to 11, inclusive, W½ of Sec. 13, Secs. 14 to 18, inclusive, E½ of Sec. 22, Sec. 23, W½ of Secs. 24 and 25, Sec. 26, and E½ of Sec. 27;

In T. 16 N., R. 9 E., E½ of Sec. 22, SW¼ of Sec. 23, W½ of Sec. 26 and E½ of Sec. 27;

Black Hills Meridian, South Dakota;

In T. 1 N., R. 57 E., Lots 9, 10 and SW¼ of Sec. 25, Lots 3, 4, 7, 8, 9, 12, 13, 14, and W½ of Sec. 36;

In T. 1 N., R. 58 E., W½ W½ of Sec. 3;

In T. 2 N., R. 58 E., SW¼ of Sec. 23, E½ E½ of Sec. 24, and E½ NE¼ of Sec. 25;

In T. 1 N., R. 59 E., E½ SW¼ and SE¼ of Sec. 21, NE¼, E½ NW¼, E½ SW¼, and SE¼ of Sec. 28;

In T. 2 N., R. 59 E., E½ SE¼ of Sec. 31;

In T. 1 S., R. 57 E., Secs. 1 and 2, N½ NE¼, NW¼, and W½ SW¼ of Sec. 9, E½ NE¼, NW¼ NE¼, and N½ NW¼ of Sec. 10, N½, E½ SW¼, and SE¼ of Sec. 11, W½ NW¼ of Sec. 16, Sec. 17, N½ and SW¼ of Sec. 19, N½ of Sec. 20, NE¼ and S½ of Sec. 22, S½ NE¼ and SE¼ of Sec. 28, SE¼ of Sec. 32;

In T. 1 S., R. 58 E., Lot 4, and W½ SW¼ of Sec. 5, fractional Sec. 6;

In T. 3 S., R. 60 E., Sec. 13, and E½ of Sec. 14;

In T. 1 S., R. 61 E., Secs. 12, 13, 24, 25 and 36;

In T. 2 S., R. 61 E., Secs. 1, 12, and N½ of Sec. 13;

In T. 3 S., R. 61 E., Secs. 14 to 18, inclusive;

In T. 1 S., R. 62 E., Secs. 18, 19, 20, 28 to 35, inclusive;

In T. 2 S., R. 62 E., Secs. 2 to 9, inclusive, N½ of Sec. 10, N½ of fractional Sec. 11, Secs. 16, 17, and 18;

In T. 3 S., R. 62 E., E½ of Sec. 22, and fractional Sec. 23;

Montana Principal Meridian, Montana.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of the above described lands subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the aforesaid Act of September 30, 1913 (38 Stat., 113), that such lands, subject to valid rights and the provisions of existing withdrawals, shall be open to actual settlers only under the provisions of the homestead laws for a period of twenty-eight days from and including 9 o'clock a. m., standard time, on the fifty-sixth day from and after the date of this order, and thereafter to entry and disposition under any and all of the public land laws applicable thereto: Provided, that the rights of the States under the provisions of the Act of March 3, 1893 (27 Stat., 592), if any, shall not be abridged in so far as any of such lands are affected thereby. Unsurveyed lands are not subject to the provisions of said Act, but in the absence of a prior valid adverse right, the preference accorded the State thereby, where the township has been surveyed and the plat thereof filed while the lands were reserved for forestry purposes or pending classification, will attach immediately upon the restoration of such lands to selection and entry under the general land laws of the United States as herein provided and continue for sixty days.

Persons who go upon any of the lands to be restored hereunder and perform any act of settlement thereon from and including the date of this order until 9 o'clock a. m., standard time, on the fifty-sixth day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, will be considered and dealt with as trespassers and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view to thereafter going upon and making settlement thereon when the lands shall become subject thereto in accordance with this order. Persons having prior settlement rights, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
28 July, 1914.

[No. 2004.]